

209 U. S.

HARLAN, J., dissenting.

After stating the principles settled in the *Ayers case* and in other cases this court said: "If these principles be applied in the present case there is no escape from the conclusion that, although the State of Alabama was dismissed as a party defendant, this suit against its officers is really one against the State. As a State can act only by its officers, an order restraining those officers from taking any steps, by means of judicial proceedings, in execution of the statute of February 9, 1895, is one which restrains the State itself, and the suit is consequently as much against the State as if the State were named as a party defendant on the record. If the individual defendants held possession or were about to take possession of, or to commit any trespass upon, any property belonging to or under the control of the plaintiffs, in violation of the latter's constitutional rights, they could not resist the judicial determination, in a suit against them, of the question of the right to such possession by simply asserting that they held or were entitled to hold the property in their capacity as officers of the State. In the case supposed, they would be compelled to make good the State's claim to the property, and could not shield themselves against suit because of their official character. *Tindal v. Wesley*, 167 U. S. 204, 222. No such case is before us." Again, in the same case: "It is to be observed that neither the Attorney General of Alabama nor the Solicitor of the Eleventh Judicial Circuit of the State appear to have been charged by law with any special duty in connection with the act of February 9, 1895. In support of the contention that the present suit is not one against the State, reference was made by counsel to several cases, among which were *Poindexter v. Greenhow*, 114 U. S. 270; *Allen v. Baltimore & Ohio Railroad*, 114 U. S. 311; *Pennoyer v. McConnaughy*, 140 U. S. 1; *In re Tyler*, 149 U. S. 164; *Reagan v. Farmers' Loan & Trust Co.*, 154 U. S. 362, 388; *Scott v. Donald*, 165 U. S. 58, and *Smyth v. Ames*, 169 U. S. 466. Upon examination it will be found that the defendants in each of those cases were officers of the State, especially charged with the execution of a state enactment